

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #03	CCRB Case #: 201500534	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/24/2015 6:05 PM	Location of Incident: Bedford Avenue & Dean Street	18 Mo. SOL 7/24/2016	Precinct: 77
Date/Time CV Reported Mon, 01/26/2015 9:34 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/26/2015 9:34 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Doyle	2068	954752	PBBN
2. SGT Daniel Gallagher	3453	932678	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Keenen Adamsedwards	10378	953617	PBBN
2. POM Lawrence Trnka	12645	955593	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Doyle	Abuse: PO Brian Doyle questioned § 87(2)(b)	A . Exonerated
B . SGT Daniel Gallagher	Abuse: Sgt. Daniel Gallagher searched the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated

Case Summary

On January 26, 2015, § 87(2)(b) filed this complaint with the CCRB via telephone.

On January 24, 2015, at approximately 6:05 p.m., § 87(2)(b) was driving his father's car and was pulled over by PO Brian Doyle and Sgt. Daniel Gallagher on Bedford Avenue between Dean Street and Pacific Street in Brooklyn for running a red light. Sgt. Gallagher asked central dispatch to run § 87(2)(b)'s license plate and central dispatch informed Sgt. Gallagher that § 87(2)(b)'s vehicle was reported stolen. Sgt. Gallagher called for backup and PO Keenen Adams-Edwards and PO Lawrence Trnka arrived at the scene. PO Doyle ordered § 87(2)(b) out of his vehicle and asked him who owned the vehicle, why it was reported stolen, and why his name was not on the registration (**Allegation A**). § 87(2)(b) was handcuffed and placed in the back seat of PO Doyle's and Sgt. Gallagher's RMP. While § 87(2)(b) was in the RMP, PO Doyle and three other officers allegedly searched his vehicle (**Allegation B**). Sgt. Gallagher, who was on his cell phone, told § 87(2)(b) that central dispatch had made a mistake and that it was not reported stolen. § 87(2)(b) was then released with a summons for running a red light at Rogers Avenue and Prospect Place.

Mediation, Civil, and Criminal Histories

- Mediation was offered to § 87(2)(b) during his intake call on January 26, 2015 and again during his interview at the CCRB on February 2, 2015. § 87(2)(b) rejected mediation both times § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (encl. 3A).
 - § 87(2)(b)
- This is the first CCRB complaint filed against PO Brian Doyle during his 1 year tenure (encl. 2A).
- Sgt. Daniel Gallagher has been a member of the NYPD for 11 years and has had 4 previous CCRB allegations involving 2 cases with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A: PO Brian Doyle questioned § 87(2)(b)

§ 87(2)(b) stated that after he was handcuffed, PO Doyle asked him who owned the vehicle, why it was reported stolen, and why his name was not on the registration. PO Doyle acknowledged asking § 87(2)(b) these questions before he was handcuffed and before Sgt. Gallagher received confirmation that § 87(2)(b)'s vehicle was not reported stolen. The recording of the police radio communications (encl. 10E) reveals that when § 87(2)(b) was pulled over, Sgt. Gallagher gave central dispatch § 87(2)(b)'s license plate central dispatch told Sgt. Gallagher and PO Doyle that his vehicle was reported stolen. Sgt. Gallagher asked for confirmation and central dispatch confirmed that the vehicle was reported stolen.

An officer cannot ask accusatory questions without founded suspicion of criminality. People v. Hollman, 79 N.Y.2d 181 (1992) (encl. 1A-H)

§ 87(2)(g)

§ 87(2)(g) _____ It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Sgt. Daniel Gallagher searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that while he was seated in the rear of PO Doyle's and Sgt. Gallagher's RMP, PO Doyle and three other officers searched his vehicle while Sgt. Gallagher was on his cell phone. PO Doyle, Sgt. Gallagher, PO Adams-Edwards, and PO Trnka all denied that § 87(2)(b)'s vehicle was entered or searched at any point. § 87(2)(g) _____

_____. It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date